

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGSCERIS SAWYERS (as parent for the infant)
JEREMIAH SAWYERS and CERIS SAWYERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CLENA Badge #
8078, P.O. FOWLER Badge #3099, P.O. HENRY Badge
#6754, JOHN DOE #1 and JOHN DOE #2,

Defendants.

Index No.

Date Purchased:

SUMMONSPlaintiff designates **KINGS COUNTY** as the place
for trial. The basis of venue is plaintiff's residence.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs' attorneys within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 1, 2023


Robert Rambadadt, Esq.

THE RAMBADADT LAW OFFICE
Attorneys for Plaintiff

THE RAMBADADT LAW OFFICE

Office & P.O. Box Address:
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New York, New York 10010
P: (646) 450-8049
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Defendant's address:

City of New York
100 Church Street
New York, New York 10007

P.O. CLENA Badge # 8078
73rd Precinct
1470 East New York Avenue
Brooklyn, New York 11212

P.O. FOWLER Badge #3099
73rd Precinct
1470 East New York Avenue
Brooklyn, New York 11212

P.O. HENRY Badge #6754
73rd Precinct
1470 East New York Avenue
Brooklyn, New York 112012

P.O. John Doe #1
73rd Precinct
1470 East New York Avenue
Brooklyn, New York 11212

P.O. John Doe #2
73rd Precinct
1470 East New York Avenue
Brooklyn, New York 112012

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CERIS SAWYERS (as parent for the infant)
JEREMIAH SAWYERS and CERIS SAWYERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CLENA Badge #
8078, P.O. FOWLER Badge #3099, P.O. HENRY Badge
#6754, JOHN DOE #1 and JOHN DOE #2,

Defendants.

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VERIFIED COMPLAINT

Plaintiff, complaining of defendant, by her attorneys, THE RAMBADADT LAW
OFFICE, respectfully alleges as follows upon information and belief:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the
County of Kings, City and State of New York.

2. This is a civil rights action in which Plaintiffs, CERIS SAWYERS (as parent for
the infant) JEREMIAH SAWYERS and CERIS SAWYERS seeks damages for personal
injuries sustained as a result of the defendants' violation of her rights as secured by 42 U.S.C.
§§1983, 1985 and 1986, and by the Fourth Amendment and the Equal Protection and Due
Process Clauses of the Fourteenth Amendment of the United States Constitution, and for
rights secured under the laws and Constitution of the State of New York. Plaintiffs also sue
in traditional tort pursuant to New York State claims. Plaintiffs were deprived of their
constitutional and common law rights when the individual defendants unlawfully targeted,

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assaulted and wrongly detained and confined Plaintiff. Plaintiffs seek damages, compensatory and punitive, affirmative and equitable relief, and award of costs and attorney's fees and such other and further relief as this Court deems equitable and just.

3. Upon information and belief, at all times hereinafter mentioned, plaintiffs, CERIS SAWYERS (as parent for the infant) JEREMIAH SAWYERS and CERIS SAWYERS (hereinafter 'PLAINTIFFS') are United States citizen and resident of Kings County, New York.

4. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, ("CITY"), was and is a municipal corporation duly organized and existing under the laws of the State of New York.

5. At all times hereinafter mentioned, Defendant CITY is a municipal entity authorized under the laws of the State of New York to operate and maintain the NEW YORK CITY POLICE DEPARTMENT ("NYPD"), inter alia, which acts as its agents in the area of law enforcement, custodial care and management of criminal offenders, and for whose actions, and the actions of individual police officers employed thereby, defendant CITY was and is ultimately responsible.

6. At all times hereinafter mentioned, Defendant CITY operated, maintained and controlled the NYPD, including all police officers therein and assumed the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the consumers of the services provided by the NYPD.

7. Upon information and belief, at all times hereinafter mentioned, Defendants P.O. CLENA Badge # 8078, P.O. FOWLER Badge #3099, P.O. HENRY Badge #6754¹, (hereinafter 'DEFENDANT OFFICERS'), were employed as Police Officers by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was

followed and preserved the constitutional rights of PLAINTIFFS. DEFENDANT OFFICERS are sued both in their individual and official capacity. At all times hereinafter mentioned, DEFENDANT OFFICERS were acting within the scope of their employment with the NYPD.

8. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. JOHN DOE #1, (hereinafter "DOE #1"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of PLAINTIFFS. Defendant DOE #1 is sued both in his/her individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

9. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. JOHN DOE #2, (hereinafter "DOE #2"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of PLAINTIFFS. Defendant DOE #2 is sued both in his/her individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

10. At all times relevant herein, each and every individual defendant herein was acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the City of New York and, where relevant, the State of New York, at all times relevant herein with the power and authority vested in them as officers, agents and employees of the City of New York and State of New York, and incidental to the lawful pursuit of their duties as officers, employees and agents of the City and State of New York.

¹ For the purposes of this Complaint the defendants' names will be represented as such and Plaintiffs

STATEMENT OF FACTS

11. On May 12, 2022 plaintiff JEREMIAH SAWYERS (hereinafter 'J. SAWYERS') was at the playground playing basketball with his friends, located at Herzl Street and Pitkin Avenue, in the county of Kings, city and state of New York.

12. After playing for a while plaintiff J. SAWYERS noticed a suspicious car, with no markings, driving slowly pass the basketball court. He further noticed that the car reversed, paused and then moved forward very slowly.

13. Being aware that the neighborhood was a high crime area, plaintiff J. SAWYERS alerted his friends that they should gather their personal items and leave quickly.

14. Plaintiff J. SAWYERS moved to exit the basketball court in the opposite direction of the suspicious vehicle. However, as he was exiting the playground the vehicle pulled up quickly to the curb in front of him and two male individuals jumped out and quickly approached him.

15. The male individuals were not dressed in traditional uniforms, but were dressed in short sleeve shirts with vests, and asked "if they could speak with him". Plaintiff J. SAWYERS, realizing they must be law enforcement, continued to walk and asked if he was being detained or under arrest, the male officer's response was "no" and plaintiff J. SAWYERS continued walking.

16. One of the male officers cut him off and blocked him on his left and he turned to move to his right and the other male officer blocked him on his right.

reserve the right to amend the caption and subsequent instances with alternate spelling of the names.

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17. The male officers grabbed his arms and prevented him from moving. Plaintiff J. SAWYERS continued to ask “what are you doing this for”, but the officers did not respond or provide him with any information.

18. Plaintiff J. SAWYERS did not resist and the male officers threw him to the ground and started to physically assault him. Other officers arrived and plaintiff J. SAWYERS continued to be physically assaulted by the officers.

19. Plaintiff J. SAWYERS was punched repeatedly in the face and body. One of the officers put his knee on his groin and others were kneeling on him.

20. After assaulting him the officers handcuffed him put him in the vehicle and transported him to the 73rd Precinct.

21. At the 73rd Precinct he was taken to the back and placed in a room where he was handcuffed to a bench and a group of officers went through his belongings.

22. At no point was plaintiff J. Sawyers informed of why he was arrested.

23. After a long while plaintiff J. Sawyers was informed that his mother had arrived at the precinct. Despite his mother being there, plaintiff J. Sawyers was not released and remained in that room in the back handcuffed to the bench for a ‘long time’².

24. When plaintiff C. Sawyers arrived she spoke with an officer who stated that it was a misunderstanding and plaintiff J. Sawyers looked older and they thought he was acting ‘suspiciously’ by leaving when he saw their car. That officer went to the back and a Sargent/Lieutenant came out and gave her a different version that and was upset when he was informed that the first officer spoke to her.

² Plaintiff C. Sawyers was contacted by plaintiff J. Sawyers teacher that he was arrested and taken to the 73rd Precinct. She drove straight to the precinct.

25. Plaintiff C. Sawyers and a teacher was manhandled when she became upset that she had been there for quite a while and they had not brought her son, plaintiff J. Sawyers, out to see her.

26. Plaintiff C. Sawyers saw and EMS come from the back and was informed that they were called because her son, plaintiff J. Sawyers, was tackled to the ground and they had to be sure he was okay.

27. Plaintiff J. Sawyers was eventually brought to the front to be released and was given a Summons for Disorderly Conduct.

28. On or about June 1, 2022, the Summons against plaintiff J. Sawyers was dismissed.

29. Plaintiff J. Sawyers was severely traumatized by these events and actions of defendants and had to address his fears and issues with a therapist.

30. Plaintiff Sawyers served a Notice of Claim at least thirty (30) days prior to the filing of this action and defendants did not satisfy this claim or refused to do so.

31. As a direct and proximate result of the breach of constitutional rights, state law and procedure by defendants, plaintiff suffered: conscious pain and suffering; suffered mental anguish; and has sustained other damages and that all of the injuries and damages sustained by plaintiff are the direct and proximate result of the willful violations of plaintiff's constitutional rights and state procedural laws by all of the defendants without any act or omission on the part of the plaintiffs directly thereunto contributing.

FIRST CLAIM

32. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-31 above.

33. At all times relevant herein, the conduct of all defendants was subject to 42 U.S.C. §§1983, 1985, 1986, and 1988.

34. The conduct of each of the defendants CLENA, FOWLER, HENRY, DOE 1 and DOE 2, on or about May 12, 2022 and all subsequent dates, acting under color of state law, jointly and severally, in conjunction with each other to cause, in failing to prevent others from causing, and in unlawfully causing plaintiff to be incarcerated on false pretenses or probable cause, in causing plaintiff to suffer physical and emotional distress, and in depriving him of his Fourteenth Amendment due process rights, were undertaken with deliberate indifference, intentionally, maliciously and/or with reckless disregard for the natural and probable cause of their acts without lawful justification, and was designed to and did cause specific and serious physical and emotional harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §§1983 and 1985 and the Fourteenth Amendment.

35. Defendants did falsely and deliberately stop, assault detain and cause him to be arrested for several hours as result of their improper actions thereby violating the civil rights.

36. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with an amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

SECOND CLAIM

37. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-36 above.

38. As a result of their concerted unlawful and malicious acts of all Defendants, Plaintiff was deprived of his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fourteenth Amendment of the Constitution of the United States and 42 U.S.C. §§ 1983, 1985(3) and 1986.

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39. That defendants CLENA, FOWLER, HENRY, DOE 1 and DOE 2 did knowingly agree in conjunction with each other to falsify information against plaintiff without cause or justification in violation of federal and state constitutional rights and in violation of due process and procedure under the laws of the state and city of New York, which resulted in injuries to plaintiff.

40. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with and amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

THIRD CLAIM

41. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-40 above.

42. Defendants CLENA, FOWLER, HENRY, DOE 1 and DOE 2 **knowingly, purposely and with malice aforethought** through a concerted effort actively organized and guided the decision to falsely accuse plaintiff of a criminal act in violation of his fourth, sixth and fourteenth (14) amendment rights.

43. Through a recognized and established practice of unscrupulously violating procedure and due process defendants without just cause to secure a warrant, that is, the state of the facts in the mind of Defendants that would not lead a man of ordinary caution and prudence to believe, or entertain an honest or strong suspicion that a criminal act had occurred did violate plaintiff's constitutional rights.

44. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have

jurisdiction over the defendants herein with and amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper

FOURTH CLAIM

45. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-44 above.

46. On information and belief, defendant CITY failed to effectively screen, hire, train, supervise and discipline its employees, servants, agents and assigns, including the named defendants herein, for their lack of truthfulness and failure to protect citizens from unconstitutional conduct of other state actors, thereby permitting and allowing the defendants herein to be in a position to fail to protect plaintiffs and to deny their rights as such guaranteed under the Federal and State constitutions.

47. On information and belief, the Defendant CITY failed to put into place and otherwise maintain an adequate structure for management relative to NYPD officers and employees and other servants, agents, officers, and employees. The structure was deficient, inter alia, at the time of evaluation and exchange within the command structure about the performance of individual NYPD officers employees; to the training of supervisory personnel to effectively and adequately evaluate performance of the NYPD officers employees; and to otherwise put the command structure on notice that an individual or individuals were at a significant level of risk to the public at large or to specific segments thereof. The net effect of this was to permit NYPD officers employees of the City and State of New York to function at levels of significant risk to the public.

48. On information and belief, the defendants CLENA, FOWLER, HENRY, DOE 1 and DOE 2, have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, defendant CITY on notice that the said defendants were likely to engage

in conduct that would violate the civil and constitutional rights of the public, such as conduct complained of by the Plaintiff herein

49. As a result of a conscious policy, practice, custom or usage, defendants have permitted, allowed and given tacit approval for the employment and retention of individuals whose individual behavior and circumstances place the public or certain segments thereof at substantial risk of being victims of civil rights violations and the lack of veracity demonstrated by the defendants herein

50. Such policy, practice, custom or usage was a direct and proximate cause of the conduct alleged herein and otherwise did directly and proximately cause the plaintiff to have suffered physical pain, mental anguish and emotional pain and suffering.

51. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with an amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

FIFTH CLAIM

52. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-51 above.

53. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such act(s) caused apprehension of such contact in the plaintiff.

54. Defendants CLENA, FOWLER, HENRY, DOE 1 and DOE 2 were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York Police Department, which are therefore responsible for their conduct.

55. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with and amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

SIXTEH CLAIM

56. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-55 above.

57. By the actions described above, Defendant CITY through its agents and employees, Defendants CLENA, FOWLER, HENRY, DOE 1 and DOE 2 committed the wrongful act of **intentional infliction of emotional distress**, which is a tortuous act under the laws of the State of New York, by: causing an assault and battery; purposely humiliating him by arresting him in public in front of his classmates and peers; and knowingly initiating a proceeding on charges that lack both cause and justification.

58. The defendants' acts were outrageous in the extreme, beyond boundaries of decency and utterly unacceptable in a civilized society. They resulted in mental and physical injuries to the Plaintiff, the ramifications of which are still felt to the present day.

59. As a consequence of the foregoing acts, Plaintiff sustained injuries, physical, psychological, and emotional, and was otherwise damaged.

60. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have

jurisdiction over the defendants herein with and amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

PRAYER FOR RELIEF

WHEREFORE, as a result of the foregoing, plaintiffs, demand against the defendants, damages in excess of the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with and amount to be determined at trial.



Robert Rambadadt, Esq.

THE RAMBADADT LAW OFFICE

Attorneys for Plaintiff

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New York, New York 10010

(646) 450-8049

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)ss.:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am an associate of the law firm of THE RAMBADADT LAW OFFICE, attorneys of record for the plaintiffs in the within action; I have read the foregoing;

VERIFIED COMPLAINT

and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: entire file maintained in your deponent's offices; investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
March 1, 2023



ROBERT RAMBADADT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CERIS SAWYERS (as parent for the infant) JEREMIAH SAWYERS and CERIS SAWYERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CLENA Badge # 8078, P.O. FOWLER Badge #3099, P.O. HENRY Badge #6754, JOHN DOE #1 and JOHN DOE #2,

Defendants.

SUMMONS and VERIFIED COMPLAINT

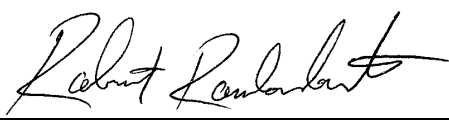
THE RAMBADADT LAW OFFICE

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New York, New York 10010
(646) 450-8049

TO:

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 02/28/2023

Signature: 

Print Signer's Name: Robert Rambadadt